

Request for Sanctions

“It is mandatory that the court impose a monetary sanction ... on a party ... whose failure to serve a timely response to the [RFAs] necessitated this motion.” Code Civ. Proc. § 2033.280(c). Unlike the analogous provisions for other discovery motions, this subdivision makes no exception for a responding party who acted with substantial justification. *Compare, e.g.*, Code Civ. Proc., §§ 2030.290(c), 2031.300(c). Defendant failed to serve timely responses to plaintiff’s RFAs. His failure to do so necessitated plaintiff’s motion; thus, sanctions are required.

Plaintiff requests \$2,750.00 in attorney’s fees and anticipated costs of \$100 and submits a declaration in support thereof. The Court finds the requested fees are reasonable and grants the same as prayed. Costs are also awarded for the \$60 filing fee. Total fees and costs of \$2,810.00 shall be paid within 30 days of service of the final order.

7. CU0001972 Cynthia Carter vs. Stone House, LLC, et al.

Defendants Stone House, LLC, Thriving Lifestyles, LLC, and Jonathan Rowe’s motion to quash service of summons and vacate previously entered defaults as to each is granted.

Request for Judicial Notice

Plaintiff’s requests for judicial notice of Exhibits 1 and 2 are denied. Exhibits 1 and 2 are *printouts* from the California Secretary of State’s website. A court may *not* take judicial notice of the *factual content* of a website. *Searles Valley Minerals Operations, Inc. v. State Board of Equalization* (2008) 160 Cal.App.4th 514, 519. Additionally, the Secretary of State’s website itself warns, “Although every attempt has been made to ensure that the information contained in the database is accurate, the Secretary of State’s office is not responsible for any loss, consequence, or damage resulting directly or indirectly from reliance on the accuracy, reliability, or timeliness of the information that is provided. All such information is provided ‘as is.’” Therefore, the documents do not qualify for judicial notice under Evidence Code section 452(h); they are not facts that “are not reasonably subject to dispute” or “capable of immediate and accurate determination.”

Legal Standard For Motion to Quash

“Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” *AO Alfa-Bank v. Yakovlev* (2018) 21 Cal.App.5th 189, 202. “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential.” *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371. Defendant’s knowledge of the action does not dispense with statutory requirements for service of summons. *Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.) On the other hand, “[S]trict compliance with statutes governing service of process is not required. Rather, in deciding whether service was valid, the statutory provisions regarding service of process should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant.” *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 410-411.

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, *inter alia*, the facts requisite to an effective service.’” *Summers*, 140 Cal.App.4th at 413. “When a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence.” *Aquila, Inc. v. Superior Court* (2007) 148 Cal.App.4th 556, 568.

Stonehouse, LLC (“Stonehouse”)

Defendants argue that service on Stonehouse was improper, noting that Plaintiff’s process server left the summons and complaint at an address unrelated to the LLC on an unauthorized individual, Angie R. Plaintiff argues service was made upon Stonehouse’s registered agent for service via its employee, Angie Rodriquez. On the record presented, Defendants have the better argument.

Code of Civil Procedure section 416.10 governs service of pleadings on a corporation. As relevant here, “A summons may be served on a corporation by delivering a copy of the summons and the complaint ... [¶] ... [t]o the person designated as agent for service of process as provided by [the Corporations Code] [or] ... [¶] ... [t]o the president or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a general manager, or a person authorized by the corporation to receive service of process.” Code Civ. Proc. §416.10 (a) & (b) (italics added).

At bar, Plaintiff “did file a proof of service of summons form, the filing of which created a rebuttable presumption that service was proper.” *Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1059. “Evidence Code section 604 states that a presumption affecting the burden of producing evidence requires ‘the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.’” *Ibid.* Here, Defendants presented evidence (*i.e.*, that Angie G. was an employee at Stonehouse without authority to accept service), which *if* credited, would support a finding that Angie G was not an authorized agent. As such, the Court must determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.

As for the actual evidence, the only admissible evidence presented by Plaintiff is the proof of service wherein a registered process server declares that he served Stonehouse, and that he specifically served Angie R. as “agent for service” or as an “authorized agent.” The process server identifies no basis for his assertion that Angie R. is the actual agent for service of process for Stonehouse and there is no record evidence of the same. Under these circumstances, Plaintiff has failed to demonstrate by a preponderance of evidence, that it served the designated agent for service of process of Stonehouse.

Thriving Lifestyles, LLC (“Thriving Lifestyles”)

Defendants argue that Plaintiff’s process server left the summons and complaint at Stone House restaurant with a Stone House employee and did not properly effectuate substituted service on Thriving Lifestyles. Plaintiff argues that substituted service on Stone House restaurant employee, “Matthrew [sic] ‘Doe’” was proper as he was the person apparently in charge of the business.

Substituted service is a valid, statutorily-authorized alternative method of effectuating service of process under California law. *Chinese Theater, LLC*, 115 Cal.App.5th at 1056. Substituted service must comport with the letter and spirit of Code of Civil Procedure section 415.20. *Id.* at 1060.

As relevant here, section 415.20, subdivision (a), provides that in lieu of personal service on a corporate officer or authorized agent listed in section 416.10, “a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office ... with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (§ 415.20, subd. (a).)

The Judicial Council Comment to section 415.20 states that when substituted service is made on a corporate entity in this fashion, the “papers must be delivered to a person who is apparently in charge of such office, such as the personal secretary of the person to be served, and such delivery must be made during the usual office hours.... [¶] The process server must set forth in his affidavit of service facts showing that these requirements were complied with.” (Jud. Council of Cal., com., foll. § 415.20.)

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Of significance, “the phrase ‘apparently in charge’ cannot reasonably be read to validate service on any employee found at a business location. There must be some indication warranting a finding the employee is someone ‘apparently in charge’ and reasonably likely to deliver the service documents to the intended recipient and the service declarations should reflect some basic facts upon which the finding was made.” *Id.* at 1059.

At bar, Plaintiff “did file a proof of service of summons form, the filing of which created a rebuttable presumption that service was proper.” *Chinese Theater, LLC*, 115 Cal.App.5th at 1059. Defendants presented evidence (*i.e.*, that Matthew was an employee at Stonehouse with no role in connection with Thriving Lifestyles, a San Francisco company), which *if* credited, would support a finding that Matthew was not a person in charge of Thriving Lifestyles. Again, the Court must determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.

As for the actual evidence, the only admissible evidence presented by Plaintiff is the proof of service wherein a registered process server declares that he served Thriving Lifestyles, LLC by substituted service and that he specifically served “Matthrew (sic) ‘Doe’” as a person apparently

in charge at the office/usual place of business of the LLC. The process server identifies no basis for his assertion that “Matthew Doe” is the apparent person in charge. Moreover, Plaintiff has submitted no other persuasive evidence which would support a finding that “Matthew Doe” was an employee apparently in charge. Under these circumstances, Plaintiff has failed to demonstrate, by a preponderance of evidence, that it properly served the person apparently in charge of Thriving Lifestyles and properly effectuated substituted service.

Jonathan Rowe

Defendants argue that substituted service on Jonathan Rowe via “Josh Zyoonis” was ineffective because there were inadequate efforts to personally serve Rowe and, in any event, Zyoonis was not a proper person in charge of the business. Plaintiff suggests that service was appropriate. Defendants have the more persuasive argument again.

With regards to natural persons, the Judicial Council Comment to section 415.20 states that:

If a defendant is a natural person, service may be made, in lieu of personal delivery of process, to the person to be served by leaving the papers at his dwelling house, usual place of abode, or usual place of business when such papers cannot be personally delivered with reasonable diligence.... The papers must be left in the presence of a competent member of the household or a person apparently in charge of such business, as to case may be, who must be at least 18 years of age and be informed of the general nature of the papers.... The process server, or other persons with personal knowledge of the facts, must set forth in the proof of service facts showing that the various requirements were complied with.

At bar, Plaintiff “did file a proof of service of summons form, the filing of which created a rebuttable presumption that service was proper.” *Chinese Theater, LLC*, 115 Cal.App.5th at 1059. Defendants presented evidence (*i.e.*, that Mr. Rowe was not personally served, and that he did not know a Josh Zyoonis as a member of his household or businesses), which *if* credited, would support a finding that Matthew was not a person in charge of Thriving Lifestyles. Again, the Court must determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.

As for the actual evidence, Plaintiff presented the proof of service wherein a registered process server declares that he served Jonathan Rowe by substituted service and that he specifically served Josh Zyoonis as a person apparently in charge at the office/usual place of business of Rowe. The process server identifies no basis for his assertion that Zyoonis is the apparent person in charge. Plaintiff also filed a declaration from former Stonehouse employee Zyoonis indicating that he was handed papers from a process server who told him he was serving Jonathan Rowe and that he left those papers on Mr. Rowe’s desk (as he promised he would). Of note, the declaration contains no information which would suggest that, when served, Zyoonis was a person apparently in charge. Plaintiff has submitted no other persuasive evidence which would support a finding that Zyoonis was an employee apparently in charge. Under these circumstances, Plaintiff has failed to demonstrate, by a preponderance of evidence, that it properly served the person apparently in charge of the business of Rowe and properly effectuated substituted service.

In summary, the motion to quash service is granted as to all Defendants.

Motion to Vacate Defaults

“The court may, upon motion of the injured party ... set aside any void judgment or order” Code Civ. Proc. § 473(d). . “ “ [B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” ’ ” *Chinese Theater, LLC*, 115 Cal.App.5th at 1061. “Because service of process was not properly effectuated here, [Defendants] were entitled to seek an order vacating the default as void.” *Id.* at 1060-1061. All defaults against all Defendants are vacated.